

An Act

ENROLLED SENATE
BILL NO. 1735

By: Seifried of the Senate

and

Lay of the House

An Act relating to career and technology education; amending 70 O.S. 2021, Section 14-108, as amended by Section 1, Chapter 326, O.S.L. 2023 (70 O.S. Supp. 2025, Section 14-108), which relates to technology center school districts and their boards of education; directing technology center school district schools to be subject to certain provisions of the State Board of Career and Technology Education rather than the State Board of Education; updating statutory language; providing an effective date; and declaring an emergency.

SUBJECT: Technology center school districts

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 14-108, as amended by Section 1, Chapter 326, O.S.L. 2023 (70 O.S. Supp. 2025, Section 14-108), is amended to read as follows:

Section 14-108. A. The State Board of Career and Technology Education shall prescribe criteria and procedures for the establishment and governance of technology center school districts, as provided by Section 9B of Article X of the Oklahoma Constitution, and such districts so established shall be operated in accordance with rules of the State Board of Career and Technology Education, except as otherwise provided in this title.

B. A technology center school district shall be a body corporate and shall possess the usual powers of a corporation for public purposes. Its official name shall be designated by the State Board of Career and Technology Education, in which name it may sue and be sued, ~~and~~ be capable of contracting and being contracted with, and ~~holding~~ hold real and personal estate.

C. The governing board of a technology center school district shall be a board of education consisting of not ~~less~~ fewer than five (5) nor more than seven (7) members. Except as otherwise provided for in subsections D and E of this section, all members of the board of education shall be elected in a manner prescribed by the State Board of Career and Technology Education. The ~~State~~ Board shall promulgate rules prescribing the manner in which the elections required by this subsection are held.

D. In a technology center school district that serves seventy or more public school districts, the territory of the technology center school district shall be divided into district zones by the State Board of Career and Technology Education. Between August 1 and December 31 of the year following the submission by the United States Department of Commerce to the President of the United States of the official Federal Decennial Census, the Board shall reapportion the territory of the technology center school district into district zones. All boundaries of district zones shall follow clearly visible, definable, and observable physical boundaries which are based upon criteria established and recognized by the Bureau of the Census of the United States Department of Commerce for purposes of defining census blocks for its decennial census and shall follow, as much as possible, precinct boundaries. District zones shall be compact, contiguous, and ~~shall be~~ as equal in population as practical with not more than a five-percent variance between the most populous and least populous district zones. The board of education of a technology center school district shall consist of one member elected from each of the district zones of the technology center school district created pursuant to this subsection. The electors of each district zone shall elect a person, who is a resident of the district zone, to represent the district zone on the ~~school~~ board. If during the term of office to which a person was elected, that member ceases to be a resident of the district zone for which the person was elected, the office shall become vacant and the vacancy shall be filled as provided in Section 13A-110 of Title

26 of the Oklahoma Statutes. The State Board of Career and Technology Education shall promulgate rules prescribing the manner in which the elections required by this subsection ~~are~~ shall be held.

E. In technology center school districts having a population of more than two hundred twenty-five thousand (225,000) electors, the territory of the technology center school district shall be divided into board zones by the State Board of Career and Technology Education. The board of education of the technology center school district shall consist of one member elected from each of the district zones. Beginning July 1, 2024, the board of education shall have the option, upon approval of a board resolution, of requiring that the electors of each district zone ~~shall~~ elect a person who is a resident of the district zone to represent the district zone on the ~~school~~ board and to not elect all board members at large, or the community continues to vote for the board members at large. If during the term of office to which a person was elected, that member ceases to be a resident of the district zone for which the person was elected, the office shall become vacant, and the vacancy shall be filled as provided for in Section 13A-110 of Title 26 of the Oklahoma Statutes. The State Board of Career and Technology Education shall promulgate rules prescribing the manner in which the elections required by this subsection ~~are~~ shall be held.

F. The board of education of a technology center school district shall have the same powers and duties that boards of education of independent school districts have. It may require nonresident students to pay reasonable tuition fees, which may be paid for a student by the independent or elementary school district in which the student resides.

G. An election to vote on the question of making a levy of not to exceed five (5) mills on the dollar valuation of the taxable property in a technology center school district under the provisions of subsection A of Section 9B of Article X of the Oklahoma Constitution, shall be called by the board of education and conducted by the county election board of such district in the same manner that elections for emergency levies in school districts under the provisions of subsection (d) of Section 9 of Article X of the Oklahoma Constitution, are called and conducted. When such levy is

approved by a majority of the electors of the technology center school district voting on the question at such election, the levy shall be made each fiscal year thereafter until repealed by a majority of the electors of the district voting on the question at an election called for such purpose. An election to vote on the question of making a local incentive levy of not to exceed five (5) mills on the dollar valuation of the taxable property in a technology center school district under the provisions of subsection B of Section 9B of Article X of the Oklahoma Constitution, may be called by the board of education; and elections on a levy for a building fund for an area school district under the provisions of Section 10 of Article X of the Oklahoma Constitution, shall be called by the board of education of such district and conducted by the county election board in the same manner that elections for similar levies are called and conducted in independent school districts.

H. Annual estimates of needs of technology center school districts shall be made and approved in the same manner that those of independent school districts are made and approved. Provided, that the State Board of Career and Technology Education shall prescribe a list of appropriation accounts by which the funds of technology center school districts shall be budgeted, accounted for, and expended. Any such estimate of needs may include an estimate of federal funds as probable income from sources other than ad valorem tax of the district and other than any excise or other tax assessed by legislative enactment and distributed in lieu of ad valorem taxes. If a technology center school district lies in more than one county, the district's estimate of needs shall be filed with and approved by the county excise board of the county designated by the school district board of education.

I. Territory may be annexed to or detached from a technology center school district, in accordance with rules prescribed by the State Board of Career and Technology Education. If the State Board of Career and Technology Education requires the submission of a petition in order for an election to be called for the purpose of annexation or deannexation of territory to a technology center school district, such petition shall not be required to bear a number of technology center school district electors' signatures which exceed fifty percent (50%) of the number of technology center school district electors who voted in the last school board election

in the territory proposed to be annexed or deannexed. Provided, the period of time from which the petition is initiated to its time of filing with the State Board shall not exceed ninety (90) days.

J. Schools of technology center school districts shall be subject to classification, inspection, and accreditation by the State Board of Career and Technology Education.

K. The technology center school district board of education may designate a county treasurer to serve as treasurer of the school district or may appoint an independent treasurer.

L. Within four (4) years after the creation of a technology center school district, such school district may, at its discretion, permit a teacher to transfer any or all accrued benefits upon employment including credit for years of service in the previous school district by the technology center school district, if the teacher at the time of hiring is employed as a teacher by an independent or elementary school district which is all or partly within the boundaries of the technology center school district or is employed as a teacher in a skills center within the boundaries of the school district.

M. The board of education of a technology center school district may convey surplus personal property without consideration to:

1. A school district that is within the boundary of the technology center school district;

2. A public school offering secondary level education which was created and is operated by this state and that is within the boundary of the technology center school district;

3. A technology center school district; or

4. The Oklahoma Department of Career and Technology Education for the support or delivery of department initiatives.

N. The board of education of a technology center school district may, without prior approval of the State Board of Career and Technology Education, approve all plans and specifications for

technology center school buildings, additions, and major modifications to school buildings that are designed to provide for the offering of vocational-technical education programs and services when the cost of the building project is to be paid with local levies or state bond monies or both local levies and state bond monies.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____